

		qualifying pay periods based on the PAGA Period.” (ROA #68.) In response, counsel’s 5/5/2026 supplemental brief simply stated that Defendant is currently in the process of determining the final number of Aggrieved Employees and PAGA Pay Periods and the Parties will provide the information forthwith.” (ROA #73 at p. 4.) As of May 27, counsel has not filed any further supplemental papers to provide the relevant information. Accordingly, the Court CONTINUES the hearing on the Motion to June 25 at 2:00 p.m. in Department CX102. The Court also SETS an Order to Show Cause re Monetary Sanctions against Class Counsel on to June 25 at 2:00 p.m. in Department CX102. for counsel’s failure to comply with the Court’s 2/6/2026 order. Any response to the OSC must be filed at least 5 court days prior to the OSC hearing.
102	Mihailovic vs. Between The Sheets, Inc. 2024-01439140	Motion for Preliminary Approval of Class Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Anna Mihailovic’s Motion for Preliminary Approval of Class Action Settlement is GRANTED. This is a putative wage-and-hour class action. On 11/12/2024, Plaintiff Anna Mihailovic, individually and on behalf of all others similarly situated, filed a class action complaint against Defendants Between the Sheets, Inc. and BTS (NB), Inc, alleging various Labor Code wage-and-hour violations. (ROA # 2.) Defendants each answered on 12/18/2024. (ROA #13, 14.) On 11/4/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action Settlement Agreement and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class claims for the non-reversionary gross settlement amount (GSA) of \$192,500. On 3/5/2026, the Court continued the first hearing on the motion and asked Class Counsel to address a few issues. Counsel has submitted supplemental materials, including an amended version of the settlement agreement (“Amended Settlement Agreement”) and an amended Class Notice. Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within

the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

Within five (5) court days, Class Counsel must provide a further amended Proposed Order. The Court notes that the two versions provided at ROA #62 and 63 both had issues: ROA #62 includes the referenced attachments but has spacing/formatting issues on page 3, while ROA #63 omits the referenced attachments but fixes the spacing/formatting issues. Additionally, both versions still use capitalized terms without defining them directly in the order. Accordingly, counsel must submit a further revised proposed order that (1) includes the referenced attachments, (2) fixes the spacing/formatting issues on page 3, and also (3) explicitly includes a statement in the order that the order incorporates by reference the definitions for capitalized terms in the settlement agreement.

The Motion for Final Approval will be heard on 9/17/2026 at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist.

Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists.

Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in *Golba v. Dick's Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1272, and *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804.

		Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
103	Zetterberg vs. Lyon Management Group, Inc. 2025-01473737	Motion for Preliminary Approval of Class Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a data breach class action settlement with consideration consisting of (1) Two years of credit monitoring and identity theft protection valued at approximately \$648 per enrollee; (2) Up to \$3,000 in Documented Loss reimbursement per claimant; (3) Alternative Cash Payments of \$75 for California residents and \$50 for all others, without documentation; and (4) Business Practice Commitments establishing improved information security measures, paid separately and apart from the claims fund. The maximum cash amount available for claims is \$400,000. The court has the following questions and comments: <u>As to the settlement:</u> 1. Plaintiff has failed to provide any case-specific valuation analysis. Conclusory assertions that the settlement is fair are insufficient for the court to conclude the settlement is fair, adequate, and reasonable, and in the best interests of the class members. For example, plaintiff does not include a discussion of any specific valuation (including any applicable discounting) of the claims alleged. Plaintiff must provide specific information sufficient for the court to evaluate whether the consideration being received for the release of the class members' claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the litigation. The valuation should also include, among other things, the basis for the credit monitoring valuation and a quantified valuation of the "Business Practices Commitments." 2. The request for administration costs must be supported by